# Notification Waiver Determination

## Tuhu – Conti Trade Australia

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| **Acquisition** | TUHU Car (Hong Kong) Limited (**Tuhu**), via a special purpose vehicle, proposes to acquire 100% of the issued share capital in Conti Trade Australia Pty Ltd (**Conti Trade Australia**) from Continental Global Holdings Netherlands B.V., as described in the transaction documents provided as part of the application (the **Acquisition**).<br>TUHU Car Inc. is the guarantor for Tuhu's obligations under the share sale and purchase agreement.<br>Tuhu and TUHU Car Inc. applied for a notification waiver in respect of the Acquisition. |
| **Determination** | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified. |
| **Date of determination** | 23 October 2026 |

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| **Parties to the Acquisition** | The acquirer, Tuhu, is a Hong Kong Stock Exchange listed company that operates an automotive service network in China, Hong Kong, Malaysia and the United States. Tuhu combines its offline physical workshops with online portals that manage customer service, inventory and supply chains, and workshop operations. Tuhu (including its connected entities) does not have any operational presence in Australia.<br>The target, Conti Trade Australia, holds 100% of the issued share capital in Tyre and Auto Pty Ltd, which trades as mycar Tyre & Auto (**mycar**) – the former Kmart Tyre & Auto Service. mycar is a tyre, automotive service and repair business operating in approximately 279 locations across Australia. There are mycar sites in all Australian states and territories. |
| **Explanation for determination** | In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**).<br>Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal overlap or vertical relationship between Tuhu and Conti Trade Australia in the supply of automotive aftermarket services in Australia.<br>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. |

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| | Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.<br><br>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.<br><br>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines. |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**